

25SMCV06519 25SMCV06519

County: los-angeles

Division: Civil Law and Motion

Department: M

Hearing date: 2026-09-22

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Case Number: 25SMCV06519 Hearing Date: September 22, 2026 Dept: M

CASE NAME: Stephens v. Prestige Door Services
LLC, et al.

CASE

NO.: 25SMCV06519

MOTION: Motion to be Relieved

HEARING

DATE: 9/22/2026

LEGAL STANDARD

The court may order that an attorney be changed or substituted at any time before or after judgment or final determination upon request by either client or attorney and after notice from one to the other. (CCP § 284(2).) The attorney seeking to withdraw must take “reasonable steps to avoid reasonably foreseeable prejudice to the rights of the client, including giving due notice to the client, allowing time for employment of other counsel.” (Cal. Rules of Prof. Conduct, 3-700(A)(2). See, e.g., Vann v. Shilleh (1975) [holding withdrawal prejudicial where attorney withdraw from the representation of defendant on the Friday before trial began the following Monday].) “The determination whether to grant or deny a motion to withdraw as counsel lies within the sound discretion of the trial court.” (Manfredi & Levine v. Superior Court (1998) 66 Cal.App.4th 1128, 1133.)

An application to be relieved as

counsel must be made on Judicial Counsel Form MC-051 (Notice of Motion and Motion), MC-052 (Declaration), and MC-053 (Proposed Order). (CRC 3.1362(a), (c), (e).) The requisite forms must be served “on the client and on all parties that have appeared in the case.” (CRC, 3.1362(d).) When a client is served by mail, the attorney’s declaration must indicate that the client’s address was confirmed within the last 30 days and how it was confirmed. (Id.) If the attorney is unable to confirm the client’s current address, the declaration must state the reasonable efforts made within the last 30 days to obtain the client’s current address. (Id.)

Additionally, the declaration “must state in general terms and without compromising the confidentiality of the attorney client relationship why” a motion is brought instead of filing a substitution of attorney. (CRC, 3.1362(c).)

ANALYSIS

Shantel Yaghoobian, Esq., moves to be relieved as counsel of record for Plaintiff David Stephens.

Counsel only submits mandatory forms MC-051 and MC-053. Counsel provides a declaration, but does not provide the declaration on mandatory form MC-052. (CRC Rule 3.1362(c).)

In general terms, Counsel states that an irreparable breakdown of the attorney-client relationship has occurred. Counsel does not state that Plaintiff’s address or email were confirmed as current within the preceding 30 days. (See CRC Rule 3.1362(d) [“...‘current’ means that the address was confirmed within 30 days before the filing of the motion to be relieved. Merely demonstrating that the notice was sent to the client’s last known address and was not returned or no electronic delivery failure message was received is not, by itself, sufficient to demonstrate that the address is current.”].) These omissions require denial of the motion. Otherwise, the forms note the hearings that are on calendar, including the September 29, 2026, CMC/OSC. Given that trial is not yet set, the client would not be prejudiced by the withdrawal.

Accordingly, the motion is DENIED without prejudice.